

25NWLC09722 25NWLC09722

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-20

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Case Number: 25NWLC09722 Hearing Date: July 20, 2026 Dept: Y

25NWLC09722: SYNCHRONY BANK vs JOANNA DIAZ

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Synchrony Bank ("Plaintiff"), the supporting declaration, and all relevant court records.

In its motion, Plaintiff requests to vacate the Default Judgment entered on June 12, 2025 because it has brought to Plaintiff's attention that Defendant may not have been properly served with the Summons and Complaint. Plaintiff argues that in the interests of justice and pursuant to Code of Civil Procedure section 473(b), the judgment should be set aside and vacated. Plaintiff asks that the case be restored to active status.

Pursuant to Code of Civil Procedure section 473 (b), the Court may set aside any void judgment or order. Code of Civil Procedure section 128 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Based on those statutes, and the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's Motion to Vacate Default Judgment. Accordingly, the Default Judgment entered against Defendant on June 12, 2025 is vacated. The Court, on its own motion, also sets aside and vacates the Writs of Execution issued by the Court on August 6, 2025 and April 24, 2026.

The Court grants Defendant 20 days leave to file a responsive pleading.

The Court sets an Order to Show Cause Re: Status of Case on January 7, 2027. The Court expects that this date will be converted to the trial date after the responsive pleading is filed by Defendant.

Plaintiff to give notice.